

Tuesday, November 15, 2022
City Council Meeting

CITY COUNCIL AGENDA

PUBLIC NOTICE is hereby given that the City Council of Spanish Fork, Utah, will hold a public meeting in the Council Chambers in the City Office Building, 40 South Main Street, Spanish Fork, Utah, commencing at 6:00 p.m. on November 15th, 2022.

Notice is hereby given that:

- In the event of an absence of a quorum, agenda items will be continued to the next regularly scheduled meeting.
- By motion of the Spanish Fork City Council, pursuant to Title 52, Chapter 4 of the Utah Code, the City Council may vote to hold a closed meeting for any of the purposes identified in that Chapter.
- Electronic Participation: Members of the City Council may participate by phone, zoom, or other electronic means

SPANISH FORK CITY does not discriminate on the basis of race, color, national origin, sex, religion, age or disability in the employment or the provision of services. The public is invited to participate in all Spanish Fork City Council Meetings located at 40 South Main St. If you need special accommodation to participate in the meeting, please contact the City Manager's Office at 804-4530.

1. 5:15pm WORK SESSION -No formal actions are taken in a work session.

Subject

A. Central Utah Water Conservancy District (CUWCD) Landscaping Standards Request

Meeting

Nov 15, 2022 - City Council Meeting

Category

1. 5:15pm WORK SESSION -No formal actions are taken in a work session.

Type

Information

File Attachments

[presentation work session.cc.11-15-2022.pdf \(1,205 KB\)](#)

2. 6:00pm Agenda Items

3. CALL TO ORDER, PLEDGE, OPENING CEREMONY, RECOGNITIONS

Subject

A. Prayer & Motivational Message

Meeting

Nov 15, 2022 - City Council Meeting

Category

3. CALL TO ORDER, PLEDGE, OPENING CEREMONY, RECOGNITIONS

Type

Information, Procedural

File Attachments

Subject

B. Pledge, led by invitation

Meeting

Nov 15, 2022 - City Council Meeting

Category

3. CALL TO ORDER, PLEDGE, OPENING CEREMONY, RECOGNITIONS

Type

Information, Procedural

File Attachments

Subject

C. Follow up to previous comments

Meeting

Nov 15, 2022 - City Council Meeting

Category

3. CALL TO ORDER, PLEDGE, OPENING CEREMONY, RECOGNITIONS

Type

File Attachments

Subject

D. Employee of the Quarter

Meeting

Nov 15, 2022 - City Council Meeting

Category

3. CALL TO ORDER, PLEDGE, OPENING CEREMONY, RECOGNITIONS

Type

Recognition

File Attachments

Subject

E. Spanish Fork University Graduating Class

Meeting

Nov 15, 2022 - City Council Meeting

Category

3. CALL TO ORDER, PLEDGE, OPENING CEREMONY, RECOGNITIONS

Type

Information

File Attachments

4. PUBLIC COMMENTS: In order to be considerate of everyone attending the meeting and to more closely follow the published agenda times, public comment will be limited to three minutes per person. A spokesperson who has been asked by a group to summarize their concerns will be allowed five minutes to speak. Comments which cannot be made within these limits should be submitted in writing. The Mayor or Council may restrict the comments beyond these guidelines.

5. COUNCIL COMMENTS

6. SPANISH FORK 101

Subject

A. Festival of Lights

Meeting

Nov 15, 2022 - City Council Meeting

Category

6. SPANISH FORK 101

Type

Information

 FOL_Billboard_22_Update

File Attachments

7. CONSENT ITEMS

Subject

A. Minutes of Spanish Fork City Council Meeting - 11-01-2022

Meeting

Nov 15, 2022 - City Council Meeting

Category

7. CONSENT ITEMS

Type

Action (Consent)

Recommended Action

Staff recommend it for approval

File Attachments

[draft 11 CC City Council Minutes November 1, 2022.pdf \(464 KB\)](#)

These items are considered by the City Council to be routine and will be enacted by a single motion. If discussion is desired on any particular consent item, that item may be removed from the consent agenda and considered separately.

Subject

B. Amendment to Filevine Sales Order

Meeting

Nov 15, 2022 - City Council Meeting

Category

7. CONSENT ITEMS

Type

Action

Recommended Action

Staff recommend it be approved

As we have progressed in designing and implementing Filevine, a cloud-based legal case management software, it has become apparent that we need the extra capability of certain automations. These automations help reduce repetitive tasks, ensuring more efficiency and accuracy.

The overall annual contract price will increase by \$3,500 to \$17,856, with a \$1,000 credit for the first year.

File Attachments

[Spanish Fork City - Filevine Automations \(1\).pdf \(34 KB\)](#)

Subject

C. Utah Department of Transportation - Letter of Support - CRISI Grant Provo Sub Re-Alignment

Meeting

Nov 15, 2022 - City Council Meeting

Category

7. CONSENT ITEMS

Type

Action

Recommended Action

Staff recommend it for approval

The Provo Subdivision Railroad Consolidation Project is to move the railroad along US-6 over next to the existing track between Spanish Fork and Mapleton. This is a very costly project so UDOT has agreed to apply for CRISI grant funding through the federal government. This letter is to affirm our support for the project to the Transportation Secretary Pete Buttigieg. It will be submitted with UDOT's CRISI grant application to the U.S. Department of Transportation.

File Attachments

[Support Letter Provo Sub 11-15-2022.pdf \(170 KB\)](#)

Subject

D. Utah Department of Transportation Betterment Agreement for Spanish Springs Development Frontage Road

Meeting

Nov 15, 2022 - City Council Meeting

Category

7. CONSENT ITEMS

Type

Action

Recommended Action

Staff recommend it for approval

This is a betterment agreement between the City and UDOT to complete improvements along 170 East through the Spanish Springs Development. Spanish Fork City will then do a pioneering agreement for the Spanish Springs Development to pay back. The Colmena Group owns the Spanish Springs Development and has reviewed the costs. They would prefer UDOT's contractor build the improvements along with Phase 1 of the I-15 interchange project.

File Attachments

[20124_UT_Agree_Spanish Fork City_Betterment.pdf \(3,007 KB\)](#)

Subject

E. River Run Holdings Addendum #2

Meeting

Nov 15, 2022 - City Council Meeting

Category

7. CONSENT ITEMS

Type

Action

Recommended Action

Staff recommend it for approval

The city has an agreement to purchase property located at 750 S 200 E from River Run Land Holdings. This addendum simply changes the latest date of closing from December 31, 2022 to December 31, 2023.

File Attachments

[River Run Land Holdings LLC \(Sam Drown\) Purchase Agreement Addendum #2.docx.pdf \(17 KB\)](#)

Subject

F. GWC Capital Storm Drain Easement Agreement

Meeting

Nov 15, 2022 - City Council Meeting

Category

7. CONSENT ITEMS

Type

Action

Recommended Action

Staff recommend it for approval

This easement agreement would allow the conveyance of storm drain water from industrial areas and public streets in the area south of SR-77 (3800 North Spanish Fork/400 South Springville).

File Attachments

[GWC - Drainage Easement.pdf \(313 KB\)](#)

Subject

G. Roy Settlement Agreement

Meeting

Nov 15, 2022 - City Council Meeting

Category

7. CONSENT ITEMS

Type

Action

Recommended Action

Staff recommend it for approval

This settlement agreement resolves the Roy v. Howell et al litigation.

File Attachments

[Michael Anthony Roy Settlement Agreement Utah County American Fork and Spanish Fork \(2\).pdf \(933 KB\)](#)

Subject

H. El Tenedor Logistics Center Reimbursement Agreement

Meeting

Nov 15, 2022 - City Council Meeting

Category

7. CONSENT ITEMS

Type

Action

Recommended Action

Staff recommend it for approval

This agreement is to formalize the reimbursement obligations of the City towards the developer of the El Tenedor Logistics center, a new commercial development proposed on 300 West and 1000 North.

These reimbursements are due from impact fees upon completion for the upsized portion of those facilities, the portion beyond what is necessary for the project. In other words, the upsized facilities are to accommodate other growth and are therefore reimbursable from impact fees. The percent reimbursable is detailed in Exhibit B.

File Attachments

[El Tenedor - Phase I Reimbursement Agreement 221103 - FINAL.pdf \(228 KB\)](#)

[El Tenedor Exhibits B1 & B2.pdf \(10,873 KB\)](#)

8. PUBLIC HEARING

Subject

A. Ordinance 37-22 TITLE 15 AMENDMENTS. The proposal involves various amendments to Municipal Code regarding Title 15 Land Use

Meeting

Nov 15, 2022 - City Council Meeting

Category

8. PUBLIC HEARING

Type

Action

Recommended Action

Staff recommend it for approval

This public hearing is to discuss amendments to Title 15 in the general topics. More detail is included in the attached reports regarding:

1. Master Plan Developments
2. Environmental concerns
3. Annexations

File Attachments

[DRAFT ordinance.title15variousamendments.11-15-2022.pdf \(169 KB\)](#)

[memo.mdp.11-15-2022.pdf \(526 KB\)](#)

[memo.environmental.11-15-2022.pdf \(2,213 KB\)](#)

[memo.annexations&process.11-15-2022.pdf \(766 KB\)](#)

9. NEW BUSINESS

Subject

A. Modera Master Planned Development Request to Amend Approval

Meeting

Nov 15, 2022 - City Council Meeting

Category

9. NEW BUSINESS

Type

Action

Recommended Action

Staff recommend it for approval

The applicants are requesting that the City Council amend the Preliminary Plat approval to remove a condition that requires fifty-percent of the condominiums in the development to be owner occupied.

File Attachments

[Modera memo.cc.5-17-2022.pdf \(15,048 KB\)](#)

Subject

B. Hearing and Resolution 22-37 Authorizing Eminent Domain for Volunteer Drive (not a public hearing)

Meeting

Nov 15, 2022 - City Council Meeting

Category

9. NEW BUSINESS

Type

Action

Recommended Action

Staff recommend it for approval

Volunteer Drive is an important collector in our City, connecting Main Street to 100 South. As the City continues to grow it has become necessary to extend Volunteer Drive east of Main Street. This extension will serve developed areas and provide a second access point, thereby allowing greater circulation and improved emergency response.

The City has attempted to purchase the needed right-of-way by offering the appraised value, but the parties have not agreed on compensation. Notwithstanding the disagreement on the amount of compensation, the property owner is willing to allow the City to occupy the property and begin construction.

This hearing is to allow the property owner to come before the Council for an opportunity to be heard on the proposed acquisition.

After the hearing, the Council may consider to adopt the resolution authorizing eminent domain.

File Attachments

[Two Pesos Condemnation Volunteer Legal.pdf \(160 KB\)](#)

[RES Two Pesos Condemnation.pdf \(64 KB\)](#)

[Volunteer Legal.pdf \(160 KB\)](#)

Subject

C. Senior Center Advisory Board Appointment of Marla Kilkelly to replace Maurine Rindslibacher

Meeting

Nov 15, 2022 - City Council Meeting

Category

9. NEW BUSINESS

Type

Action

Recommended Action

Staff recommend it for approval

File Attachments

Subject**D. All West TiVo Transport Agreement with Spanish Fork City - Channel Sharing Agreement****Meeting**

Nov 15, 2022 - City Council Meeting

Category

9. NEW BUSINESS

Type

Action

Recommended Action

Staff Recommend it for approval

The new SFCNtv IPTV offering requires a dedicated data transport circuit from the SFCN headend to one of two TiVo data centers, as well as encoders for the local off-air and local origination cable TV channels that will be included in the SFCNtv offering.

There is a high cost associated with these circuits and encoders. In order to make offering the TiVo IPTV solution more cost effective, All West Communications has teamed up with 3 other local providers (CentraCom, Beehive, Strata) to share the cost of the transport circuit and encoder equipment four ways.

They have graciously offered to allow us to join their ad hoc consortium and pay our 1/5 of the total cost, thus reducing their costs slightly and our cost dramatically versus doing it alone.

File Attachments

[All West TiVo Transport Agreement Memo.pdf \(221 KB\)](#)

[Spanish Fork City TIVO Transport - Channel Sharing Agreement Form \(8-31-2022\).pdf \(89 KB\)](#)

10. ADJOURN TO CLOSED SESSION

11. CLOSED SESSION -The Spanish Fork City Council may temporarily recess the regular meeting and convene in a closed session to discuss (a) discussion of the character, professional competence, or physical or mental health of an individual (b) strategy sessions to discuss collective bargaining (c) strategy sessions to discuss pending or reasonably imminent litigation (d) strategy sessions to discuss the purchase, exchange, or lease of real property, including any form of a water right or water shares, or to discuss a proposed development agreement, project proposal, or financing proposal related to the development of land owned by the state (e) right or water shares (f) discussion regarding deployment of security personnel, devices, or systems (g) investigative proceedings regarding allegations of criminal misconduct as provided in Utah Code § 52-4-205.

Subject**A. Closed Session****Meeting**

Nov 15, 2022 - City Council Meeting

Category

11. CLOSED SESSION -The Spanish Fork City Council may temporarily recess the regular meeting and convene in a closed session to discuss (a) discussion of the character, professional competence, or physical or mental health of an individual (b) strategy sessions to discuss collective bargaining (c) strategy sessions to discuss pending or reasonably imminent litigation (d) strategy sessions to discuss the purchase, exchange, or lease of real property, including any form of a water right or water shares, or to discuss a proposed development agreement, project proposal, or financing proposal related to the development of land owned by the state (e) right or water shares (f) discussion regarding deployment of security personnel, devices, or systems (g) investigative proceedings regarding allegations of criminal misconduct as provided in Utah Code § 52-4-205.

Type

Discussion

File Attachments

12. ADJOURN
